



File No.: EXP202410421

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 15, 2020, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights TD/00207/2020, followed against the FUNDACIÓN C.R.E.T.A. CENTRO PARA EL ESTUDIO Y REPRESENTACIÓN DEL TEATRO ANTIGUO (hereinafter, the complained party).

In this procedure, it is recorded that the complaining party exercised the right of access to the personal data concerning them, without this request being duly attended to, issuing a resolution that required the following:

“FIRST: TO GRANT the complaint made by Ms. A.A.A. and to urge the FUNDACIÓN C.R.E.T.A. CENTRO PARA EL ESTUDIO Y REPRESENTACIÓN DEL TEATRO ANTIGUO with NIF G83409136, to send to the complaining party, within ten working days following the notification of this resolution, a certificate stating that it has attended to the right of access exercised by them or to deny it with justification indicating the reasons why it is not appropriate to attend to their request. The actions carried out as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, which granted a period of ten working days to the complained party for the attention of the exercise, was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, not being collected by the responsible party within the period of availability, as recorded in the acknowledgment of receipt in the file, and therefore understood to have been carried out in accordance with the provisions of articles 43.2 and 41.5 of the LPACAP on December 26, 2020.

THIRD: After the period granted for the required actions in said resolution had elapsed and having submitted the complaining party, on July 14, 2022, with entry registration number REGAGE22e00030420999, a written statement indicating that the resolution had not been complied with, a requirement was sent to the complained party to submit, within five working days, a certificate of compliance with said resolution to the complaining party and, in

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Within a period of ten business days, it shall notify this Agency of the measures adopted.

The notification of said requirement was carried out in accordance with the rules established in the LPACAP through electronic means, and was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, and is therefore understood to have been made in accordance with the provisions of articles 43.2 and 41.5 of the LPACAP on August 6, 2022.

FOURTH: After the deadline for the requirement had passed and a new written submission was made by the claiming party on March 3, 2024, with entry registration number REGAGE24e00016531912, a requirement was sent twice to the claimed party to submit to the claiming party a certification of compliance with said resolution within a period of five business days, and to notify this Agency of the measures adopted within a period of ten business days. This requirement included a copy of the resolution from the procedure for exercising rights TD/00207/2020.

The two notifications of the aforementioned requirement, which were carried out in accordance with the rules established in the LPACAP, were returned to sender by Correos due to Non-collection (not picked up at the office after notices were left in the mailbox) on April 23 and May 16, 2024, as evidenced by the acknowledgments of receipt in the file, despite being sent to the tax address of the claimed party provided by the State Agency for Tax Administration.

FIFTH: After the deadline for the initial resolution and the subsequent requirements, the claimed party has not submitted any response to this Agency that certifies that it has addressed the exercised right of access or that it has denied it with justification indicating the reasons why the request should not be granted.

SIXTH: No ordinary administrative appeal can be filed against the aforementioned resolution due to the expiration of the established deadlines for such. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SEVENTH: According to the report collected from the AXESOR tool, FUNDACIÓN C.R.E.T.A. CENTRO PARA EL ESTUDIO Y REPRESENTACIÓN DEL TEATRO ANTIGUO is an entity established in 2003, with a business volume of (...) euros in 2022.

EIGHTH: On August 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the claimed party for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

NINTH: The initiation agreement was notified to the claimed party, in accordance with the rules established in the LPACAP, through an announcement published in the Official State Gazette dated September 12, 2024, after the attempt to notify by postal mail at the tax address of the claimed party was unsuccessful, as evidenced in the file.

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In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party through electronic means via the single enabled electronic address.

TENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the claimed party.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the claimed party has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for exercising rights TD/00207/2020 and the requirements for compliance with it indicated in the first, second, third, and fourth antecedents were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the expiration of the deadlines established for the filing of the appeals indicated therein.

SECOND: The claimed party has not submitted any response to this Agency that certifies compliance with the resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In light of the facts presented, it is considered that the party being claimed has failed to comply with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the party being claimed, for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for the exercise of the data subject's rights under this Regulation;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Permanent Nature of the Infringement

Regarding the limitation of the indicated infringement, the following should be noted. The party being claimed has persisted in its unlawful conduct, disregarding the order made in the resolution of procedure TD/00207/2020.

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The infringing type includes the obligation to comply with the resolutions of this Agency, for which a deadline is granted, and once this is exceeded, the infringement is committed; however, such non-compliance and the consequent obligation remain over time until such compliance occurs, as it is

a permanent infringement.

In this regard, the Supreme Court, Administrative Litigation Chamber, Section Three, has ruled in judgment 978/2020 of 09/07/2020, Case No. 4700/2019, which collects the jurisprudence of this Chamber on so-called “permanent infringements”:

- In the Supreme Court ruling of January 28, 2018 (case no. 2697/2016), it is stated that “the permanent infringement does not require a concurrence of unlawful conduct but a single action of a lasting nature, whose unlawful content extends over time, as long as the active subject does not decide to cease in the execution of their conduct.”
- In the Supreme Court ruling of November 4, 2013 (cassation case no. 251/2011), it is justified that “if the persistence in non-compliance could not be sanctioned, it would foster impunity since compliance with the obligation would depend on weighing the cost of compliance against the amount of the fine; and once the sanction is imposed, compliance with the obligation would only depend on the will of the infringer without the possibility of being sanctioned for it.”

V

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the party being claimed for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

VI

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its

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Article 83.6, which may motivate such conduct to open a further sanctioning administrative procedure. Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the FOUNDATION C.R.E.T.A. CENTER FOR THE STUDY AND REPRESENTATION OF ANCIENT THEATER, with NIF G83409136, a fine of 1,000.00 euros (one thousand euros) for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

SECOND: TO ORDER the FOUNDATION C.R.E.T.A. CENTER FOR THE STUDY AND REPRESENTATION OF ANCIENT THEATER, with NIF G83409136, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complainant a certification addressing the exercised right of access or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with what is established in the resolution of the rights exercise procedure TD/00207/2020. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to the FOUNDATION C.R.E.T.A. CENTER FOR THE STUDY AND

REPRESENTATION OF ANCIENT THEATER.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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